

[Balochistan High Court]

Judges: Hon'ble Justice Muhammad Najamuddin Mengal



Shah Khalid S/O Bakhtiyar

versus

The State Through Prosecutor General

**COMPOUNDABILITY OF OFFENCE UNDER SECTION 14 OF THE
PREVENTION OF ELECTRONIC CRIMES ACT, 2016.**

Criminal Revision No. 69 of 2023
decided on 6th May, 2025.

**(a) Prevention of Electronic Crimes Act, 2016---S.Section 14, S.Section 43---
Compoundability of offence under Section 14 of the Prevention of Electronic
Crimes Act, 2016.---**

Since the offence is compoundable, and the complainant does not wish to press the complaint, the compromise is accepted and the conviction is set aside.

Where an offence is compoundable under law and the complainant no longer wishes to prosecute, a conviction can be set aside on the basis of compromise between the parties.

M/s Abdul Khair Achakzai, Abdul Khalid Khan, Muhammad Faheem Kakar for Appellant.

Mr. Tariq Asad, Mr. Umar Saeed for Respondent.

The conviction orders passed by the Courts below are set aside on the basis of compromise and the petitioner is acquitted of the charge. Criminal Revision Petition No.69 of 2023 is, accordingly, disposed of.

Criminal Revision No.69 of 2023

06.05.2025 M/s Abdul Khair Achakzai, Abdul Khalid Khan and Muhammad Faheem Kakar, Advocates for the petitioner.

Mr. Tariq Asad, Assistant Attorney General.

Mr. Umar Saeed, Assistant Director (Legal) FIA.

Mr. Abdul Ghafoor son of Lal Bux, Complainant) in person.

Shah Khalid, accused/petitioner in person.

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This order disposes of Criminal Revision No.69 of 2023, filed by the petitioner (accused) Shah Khalid against the judgments dated 15th November, 2022 and 11th July 2023, passed by the learned Judicial Magistrate-VII/Magistrate FIA/Cyber Crimes, Quetta and Sessions Judge, Quetta, respectively, whereby the petitioner (accused) was convicted under Section 14 of the Prevention of Electronic Crimes Act, 2016 and sentenced for a period of Two (2) years with fine of Rs.45,000/- (rupees Forty-five thousand only), while the same was maintained by the learned Sessions Judge, Quetta. Feeling aggrieved, the petitioner filed instant Revision Petition.

On 14.04.2025, Mr. Umar Saeed, Assistant Director Legal FIA filed an Affidavit duly signed by the complainant Abdul Ghafoor Siyal, which was taken on record. As per contents of the Affidavit, the complainant Abdul Ghafoor Siyal, present in person, does not want to press his complaint

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to the extent of petitioner (accused Shah Khalid). The complainant is duly identified by Umar Saeed, Assistant Director (Legal) FIA, states that he has patched up the matter with the petitioner (accused) outside the Court and does not want to press his complaint. As per Section 43 of the PECA, the offence u/s 14 of PECA is compoundable in nature which reads as under:

43. Offences to be compoundable and non cognizable.---(1) All offences under this Act, except the offences under sections [10, 13, 14, 20, 21, 22 and 26A] and abetment thereof, shall be non-cognizable, bailable and compoundable:

Provided that offences under section 17

shall be cognizable by the investigation agency on a written complaint by the Authority.

(2).....”

Since the offence under Section 14 of PECA, 2016 is compoundable in nature and the learned Assistant Attorney General and the Law Officer of FIA did not raise any objection, thus, I accept the compromise. Accordingly, the conviction orders passed by the Courts below are set aside on the basis of compromise and the petitioner is acquitted of the charge. The petitioner is on bail, his bail bonds stand discharged. Surety filed by the petitioner is ordered to be returned after expiry of appeal period.

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Criminal Revision Petition No.69 of 2023 is, accordingly, disposed of.

Judge

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